

Assam Evacuee Property Rules, 1951

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State of Assam - Act

Assam Evacuee Property Rules, 1951

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Assam Evacuee Property Rules, 1951

Rule ASSAM-EVACUEE-PROPERTY-RULES-1951 of 1951

Published on 21 April 1951

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Assam Evacuee Property Rules, 1951

Published vide Notification No. RMC 21/51/33, dated 21st April, 1951

Last Updated 12th February, 2020

Notification No. RMC 21/51/33, dated the 21st April, 1951. - In exercise of the powers conferred by Section 33 of the Assam Evacuee Property Act, 1951 (Assam Act 11 of 1951), the Governor is pleased to make the following Rules, namely:

1.

Short title.

- These Rules may be called the Assam Evacuee Property Rules, 1951 (Part II).

2.

Definition.

- In these Rules, "the Act" means the Assam Evacuee Property Act, 1951 (Assam Act 11 of 1951).

3.

Maintenance of accounts of receipts and payments in respect of evacuee properties.

- An account of the receipt derived from or the payments made in respect of every evacuee property under sub-section (1) of Section 10 or of every evacuee property under clause (i) of sub-section (3) of Section 20 of the Act shall be maintained as far as may be in the form and manner prescribed for maintenance of the accounts of estates managed by the Court of Wards under the Court of Wards Act, 1879.

4.

Audit of accounts of evacuee properties.

(1)

The accounts of every evacuee property vested in the Committee shall be audited under clause (ii) of sub-section (3) of Section 20 of the Act at such intervals and by such person as has been prescribed in respect of audit of accounts of a local authority under the Assam Local Fund (Accounts and Audit) Act, 1930 (Act 2 of 1930) and the rules framed thereunder, and the cost of such audit shall be paid according to the scale of daily rates laid down below :

Party

Daily rate

One Auditor and one peon

Rs. 37.00

One Auditor, one Assistant Auditor and one peon

Rs. 51.00

(2)

The audited accounts shall be available for inspection at the office of the Committee during office hours.

5.

Expenses in connection with the management of evacuee properties and the manner of their recoupment.

(1)

The levy referred to in sub-section (1) of Section 17 of the Act for any year shall be at such rate, not exceeding 30 per cent on the gross collections, as may be fixed for that year by the State Government.

(2)

The total amount of such levy shall be distributed amongst the evacuee properties on the basis of gross collections made in respect of such property and when any such property is held jointly by more than one evacuee, the amount of the levy assessed on such property shall be distributed pro rata according to the share of each evacuee therein

6.

Remittance of receipt from evacuee properties to evacuees.

- The receipts derived from the evacuee property of an evacuee vested in the Committee shall be paid under sub-section (4) of Section 20 of the Act after deduction therefrom of all sums debitable to such receipts quarterly in case of residential or business premises or vacant land situated within an urban area and annually in the case of land or homestead used for or in connection with agricultural purposes, by such arrangement as the evacuee may make in writing with the Committee.

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